

Torts
Taylor v. Vallelunga
171 Cal.App.2d 107, 339 P.2d 910 (1959)

Keyword Subject

Battery, Intentional Infliction of Emotional Distress

Facts

In December of 1956, Plaintiff's father was beaten by Defendant and sued Defendant for battery. However, Plaintiff's daughter was present and alleged that the events caused her "severe fright and emotional distress."

Procedural History

Trial Court: In favor of Defendant

Appeal: In favor of Defendant

Issue

Can someone claim IIED for events perpetrated by someone who didn't know that claimant was there?

Holding: No; Judgement Affirmed

Principle

A claimant can only claim IIED if the perpetrator of the accused tort knew claimant was there

Reasoning

Separate Opinions

Notes